

THE VICTORIA BRITISH COLONIST.

VOL. 3.

VICTORIA, VANCOUVER ISLAND, TUESDAY, OCTOBER 28, 1862.

NO. 49.

THE BRITISH COLONIST Arrival of the Eliza Anderson

EVERY MORNING.

(Sundays Excepted.)

AT VICTORIA, V.I.

TERMS: For Annual, in Advance by Mail, \$20 00

For Six Months, " " " 12 00

For Three Months, " " " 6 00

Single Copies, " " " 10

Advertisements inserted on the most reasonable terms.

THE WEEKLY COLONIST.

Is furnished to Subscribers for \$3 a year, \$4 for six months; \$5 for three months; payable in advance.

NOTICE.

L. F. JAMES is the only authorized Agent for the collecting of advertisements, etc., in San Francisco.

AGENTS.

John Mackin, Nanaimo.

S. T. Tiley, New Westminster.

B. Bayley, Yale.

E. Brailley, Fort Alexander.

Robinson's Express, Smith's Fork.

M. Merrill, Fort Hope.

Kimball & Gladwin, Yale.

W. H. Hays, Port Hope.

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TWO DAYS LATER NEWS.

The U. S. Mail steamer Eliza Anderson arrived at 8 o'clock, bringing the following dispatches. The Anderson brought a large freight of cattle, sheep and horses.

PLEASANT VALLEY, Oct. 17.—The rebel Gen. Stuart is at a point four miles from Leesport on the Occoquan river. General Lee is at Stephenson depot, five miles east of Winchester. Gen. Longstreet is ten miles above Winchester. Stonewall Jackson is at Banker Hill.

NEW YORK, Oct. 17.—Draft in this State ordered for Nov. 10, the number to be probably thirty-five thousand.

CAIRO, Oct. 17.—A Federal force from Shawneetown started on Wednesday in pursuit of the rebels who robbed the steamer Hazel Dell. The mail is taken from her having already been recovered.

Price is gathering a large number of troops at Holly Springs, Miss., with a view it is said, of attacking some point on the Mobile and Ohio railroad.

NEW YORK, Oct. 17.—The Underwriters have advanced war-risk for vessels sailing in the track of the Alabama, to 5 per cent. It was before, by officers captured by her, and since released, that was ordered by the United States.

WASHINGTON, Oct. 18.—A dispatch from head quarters of the army of the Potomac says the reconnoissances under Hancock and Humphrey, returned after going within five miles of Bunker Hill. The enemy did not interfere with the return of Hancock, but followed Humphrey with artillery and cavalry to within a short distance of Shepherdstown, opening on him with artillery wherever they could. Our loss was one killed and six wounded. The troops crossed the Potomac safely last night at Shepherdstown with a number of prisoners. One hundred rebel wounded left Charleston on the 20th Sept., gives a gloomy picture of affairs there. All the necessities of life are at starvation prices. Large amounts of contraband Confederate notes are in circulation. He says the Confederates have been put into service as soon as men can be obtained.

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NEW YORK, Oct. 18.—The Times Harpers Ferry correspondence says the force which went on a reconnoissance to Charleston and vicinity, returned to Bolivar Heights yesterday, the object of the expedition having been fully carried out.

Sketches of the Legislature.

EDITOR BRITISH COLONIST.—As we have in our English papers "Sketches of Parliament," do not see why you colonists should not have your own "Sketches of the Legislature." I would like to see a peep at the proceedings of the "colonial legislature" and give you my English ideas of them. I was at a loss to conceive how doctors should have any greater claims as an example than the proceedings of the "colonial legislature" and give you my English ideas of them. I was at a loss to conceive how doctors should have any greater claims as an example than the proceedings of the "colonial legislature" and give you my English ideas of them.

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What the Ancestress would charge so much more. I considered that your legislators are what we call in England "a run set of coveys." I thought that it was not fair when the members with black eyes, as if from artificial crying, and who look like a supernumerary undertaker, and who look like the grege of a rhinoceros to put indignantly, but by a sudden, and you will admit most difficult transition, I fancied myself in the House of Commons, and contained myself. More than, if agreeable to you, I ensure my card, and have the honor to be, Your humble servant.

JOHN NEWCOMB.

ADDITIONAL MINING NEWS.

There are about sixty claims on Williams Creek which have paid well during the past season. About three thousand claims have been located on many of their very rich prospects have been obtained, but owing to the fact that most of them were projected late in the season, and were very expensive to work, the owners have not been able to take much of the ore.

Claims are held at very high rates on this creek, particularly on the flat below the town. One man paid \$6000 for a single interest in claim not then projected. A Mr. Cameron bought one interest from a miner named Clendinning, for \$2000, and was offered \$7000 for it a few days after. Derval, a Canadian, after his single interest to Clendinning for \$9000. Cameron, before mentioned, had three claims of 100 feet each; one by purchase, one by pre-emption; and one for his wife, who was allowed to hold a claim by Judge Begbie. There are other instances of judges holding claims in California. Capt. Himes, who bought the Coningham claim last spring for \$15,000, has taken out the purchase money, and sold out for \$8000.

The Welsh Co. have a very rich claim, but owing to their shaft not being properly timbered, it is in a very bad state. They have refused \$2,500 for a single interest.

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It was thought best to send him off to some of the British possessions, and Chief Burke having called upon the British Consul, that official agreed that he should be sent off to Victoria on the next northward-bound steamer. In the meantime Lieut. Newport will remain at the quarters of the Provost Guard. He has two brothers in the British army.—S. E. Bulletin.

CITY COUNCIL.

MONDAY, Oct. 27th, 1862.

The Council met at 7:20 p. m. Present—His Worship the Mayor, and Messrs. Copland, Lewis, Seary and Hicks.

A communication was received from the Chairman of the Fire Delegates, representing the 4th section of the By-Laws relating to the duties of Fire Wardens, and the Council gave directions for the removal of buildings might cause confusion at a fire by orders conflicting with those issued by the regular officers of the Fire Department, being issued, and recommending that the said section be withdrawn; also suggesting that an Ordinance be passed to compel citizens to have a tank capable of holding at least 100 gallons of water upon their premises, constantly filled.

Mr. Hicks moved that the communication be laid on the table until copies of the Firemen's Protection Act be obtained from the Colonial Secretary. He thought that if the section was likely to cause conflict between the Fire Wardens' Department, it would be as well to rescind it. He wished, however, to be sure on the subject, and proposed that the Firemen's Protection Act be taken up before taking any steps.

The Colonial Secretary was asked to furnish to the Council copies of all acts relative to the Firemen's Protection Act.

Mr. Copland said that at the time the Firemen's Protection Act was passed, there were no city firemen, and that the Firemen's Protection Act was passed, there were no city firemen, and that the Firemen's Protection Act was passed, there were no city firemen.

Mr. Seary said that after listening to Mr. Copland for twenty minutes, he had expected some of the Firemen's Protection Act, but he had not expected some of the Firemen's Protection Act, but he had not expected some of the Firemen's Protection Act.

Mr. Lewis suggested certain amendments to the Firemen's Protection Act, and he thought would be a good idea to call the matter right, but was called to order by Mr. Copland, who pointed out that the rules of order required that the matter be given up.

The motion was then put and carried.

A letter had been received from Mr. Watson, the engraver, accompanied by the Corporation Seal executed by him and specimen impressions, mentioning that he had been to San Francisco about a year, and had learned that the cost would be \$30. After some discussion, a motion for the acceptance of the seal, and the Corporation Seal was passed.

The Supplementary Ordinance, relating to the Firemen's Protection Act, was passed.

Mr. Seary left the room at this stage of the proceedings, and did not return.

RESOLUTIONS.

The following resolutions were then brought forward by Mr. Hicks:

Resolved, That whereas the Hudson Bay Company have sold large tracts of land in the Town of Victoria, and in the interest of the public, it is the duty of the Council to see that the said Company have received large sums of money for the same, and that they have failed to perform their stipulations of cession.

The Council would therefore recommend that if a settlement has not been completed between the Hudson Bay Company and the Hudson Bay Company, that a Commission be appointed to enquire into the case, as we feel a great wrong has been done and humbly pray your Majesty for redress.

Resolved, That the foregoing Resolutions be embodied in a Memorial to His Grace the Duke of Newcastle, and a Committee be appointed for that purpose.

We, the Mayor and Councilors, in Council convened, beg most respectfully to submit the following resolutions for the consideration of His Grace the Duke of Newcastle:

Resolved, That being loyal subjects of Her Majesty, and anxious that justice should be done to all her loyal subjects, we do hereby feel deeply regret at our position, in view of the fact that we have not had one foot of public land sold in this city, and that the Hudson Bay Company have conveyed to the city, as will more fully appear by the correspondence with His Excellency, James Douglas.

Resolved, That we view with distrust our position, and that we view with distrust our position, and that we view with distrust our position.

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support of the course he had determined to pursue. Mr. Hicks said that it was a most unusual course to adopt.

Mr. Copland quoted the Rules of Order to prove that the Mayor must put every question properly presented to the Council.

Mr. Lewis hoped His Worship would reconsider his decision.

The Mayor then asked Mr. Hicks to state what was the object of pressing the matter through.

Mr. Hicks replied that it was in order to ensure the speedy transmission of the document.

The Mayor said that he certainly had a vote as Councilor, as well as his vote as Mayor.

Whereupon Messrs. Hicks and Copland rose abruptly, and the proceeding terminated.

The Mayor then, without a motion, adjourned the meeting until Friday next at 7 p. m.

Cricket.

The match last Saturday was one of the most interesting of the season—the following is the score when the wickets were drawn in the evening:

Score.

Howlett, b Richardson, 27

Ballantyne, b Richardson, 0

Ellis, b Richardson, 0

Whitaker, b Richardson, 0

Palmer, b Howard, 0

Green, b Howard, 0

Holland, c Henley, b Richardson, 0

Park, not out, 0

Conroy, run out, 0

Heseltine, b Howard, 0

Tye, c Henley, b Howard, 0

Byes, 17. Wides, 1.

Total, 90

2nd Innings.

Howlett, run out, 0

Ballantyne, b Hamilton, 0

Heseltine, b Richardson, 0

Palmer, c Chisholm, b Hamilton, 0

Green, b Howard, 0

Holland, c Henley, b Richardson, 0

Park, not out, 0

Conroy, run out, 0

Heseltine, b Howard, 0

Tye, c Henley, b Howard, 0

Byes, 17. Wides, 1.

The Weekly Colonist.

Tuesday, October 28, 1863.

News from the States.

We lay before our readers eleven days later news from the States. We do not see the slightest indication of peace. The Federals have been successful in a battle near Perryville, Kentucky, and the success of Rosecrans at Corinth seems to be fully confirmed. In the Western department matters favor the north; and to make it more conclusively in their favor, Halleck is to be sent out West as Commander-in-Chief. The last winter campaign may possibly be re-enacted. In the East the tide of events seems to be on the Confederate side. McClellan is doing nothing. Lee has 200,000 on the Rappahannock. So the expulsion from Maryland seems to have produced no very marked results, whilst the East is balanced by the West. A forward movement of the Federals was rumored. Another change in the Cabinet is to occur—Banks is to take Stanton's place as Secretary of War. The Southern Congress are disposed to raise the standard of civil war in Oregon and California. The North seems to want a head—a dictator; and if success does not soon follow the plans of the Cabinet, it will not be long before the army will impose a dictator on the nation. It will be dictator against dictator. The northern people are dissatisfied; and any change of rulers promising success and peace will prove acceptable. Gold commands a premium of 33 per cent. in New York, and Federal treasury notes are nearly 30 per cent. below par. Rather gloomy financial prospects.

English News.

By the arrival of the steamer Sierra Nevada we have details of English news to September 6th, being one week later than the last. We perceive that Her Majesty, by an order in Council, has authorized Horatio Nelson Lay and Captain Sherard Osborn to enter the service of the Emperor of China and to enlist British subjects to fight in that country. Mr. Lay, who represents the Chinese Government in England, and Capt. Osborn, who is to be Commander-in-chief of the new auxiliary forces, are making arrangements for the formation of a fleet. Quite a number of war vessels have already been purchased by them and orders given for more. The International Temperance Convention had commenced its sittings at Haverover square, London, under the presidency of Sir Walter C. Trevelyan. The plan of this convention is very much like that of the Social Science Congress. The South Australian Parliament having addressed the Imperial Government, praying the dismissal of Judge Boothby for erroneous decisions, it was submitted to the law officers of the Crown, who considered, taking all circumstances into consideration, that the Crown would not be well advised to accede to the address. A Liverpool shipowner, named Ruxton, has been committed for trial, charged with being accessory to the willful destruction of one of his own vessels, with the intention of defrauding the underwriters. The vessel, which was called the Roscoe, was destroyed by fire, according to his orders, when within a few miles of Smyrna. From the Manchester Guardian we learn that Miss M. S. Rye, so well known in connection with the Female Middle Class Emigration Society is now endeavoring to send out to British Columbia a number of those young women who have recently been sent out of employment in Manchester. She has now upon her books over a thousand names of young women, principally of the working classes, whose ages range from 18 to 30. The ordinary passage-money to British Columbia is £25. Mr. Lindsay, M. P., has consented to reduce the fare by £3 each, while Miss Rye's nominees, and has also arranged that if Miss Rye will pay £10 for each young woman she sends he will take an I. O. U. from the girl herself for the remainder. Miss Rye had, in consequence, determined if possible, to send fifty young women from Manchester to British Columbia on the 15th September. An agriculturist who has travelled through the country, writing to the *Times* says, in speaking of the crops, "my opinion as to the general produce of this harvest in England is that we shall have a wheat crop from six to eight bushels per acre below an average, and of a shrivelled and inferior quality; from ten to six bushels; potatoes ten to twenty per cent. above an average, and less diseased by fifty per cent. than last year." According to the *European Times*, the imports of wheat into the United Kingdom up to the end of July was 4,613,821 quarters, showing an excess of about 31 per cent. over the extraordinary importation of the corresponding period of last year, and of more than 137 per cent. over those of the same month of 1860. Since the end of July the arrivals from America have continued to be of remarkable magnitude, and will prepare the country to meet the deficiency of the harvest crop. The cotton famine continues to be an all-absorbing topic in England. Nothing gives one so striking an idea of its alarming magnitude as a report made by the Birmingham deputation, who were sent into the cotton districts to make inquiries. They calculate that the diminution of wages in the distressed districts during the coming winter months will be at least £150,000 a week; and they state that when the distress has reached its height it will require advances at the rate of £100,000 a week to keep the population from starving. The Lords of the Admiralty intend to oblige the full dress uniform at present worn by the officers of the navy and substitute in its stead steamer tunic. Home politics attract little attention, all parties have pretty well delivered themselves during the last session, and are now enjoying a season of rest. Earl Derby and his son Lord Stanley have been assisting the Protestants in their Guild-week festivities, while Mr. Gladstone was announced was to attend the Newcastle-on-Tyne banquet given in his honor.

The *Victoria Daily Chronicle* is the name of the new paper to be started by Messrs. Higgins and McMillan.

LOCAL INTELLIGENCE.

WEDNESDAY, Oct. 22.

Police Court.

Thomas Kerr was charged by the Superintendent of Police with being a suspicious character. He had observed the prisoner skulking by some houses, between 12 and 1 o'clock yesterday morning, and upon accounting him received no satisfactory reply. The prisoner refused to give any account of himself, and when asked his name told the officer that he had been acquainted with him long enough to know. In answer to the Magistrate he said that he was a shipwright and caulker, and had worked for Mr. Laing. Nothing being known against him, he was discharged with a caution. Edward Collis, a notorious character, was charged by Edward Walton with having maliciously damaged his property by being drunk and disorderly. The prosecutor said that the prisoner entered his office and tried to induce a person who was in there to take a drink, which he refused. As the prisoner persisted in attempting to enter behind the counter, he was seized by the prosecutor, and he once again weighty and the prosecutor tried to eject him. After striking at him ineffectually for some time, the prisoner deliberately broke a large square of glass with his fist, the amount of damage done being valued at \$35. The prisoner denied all knowledge of the affair, saying that he had tasted no food since Sunday morning, and that a drink which a friend gave him had done him no harm. He was a very bad character was given of him by the police. Mr. Pemberton said that he had given him many cautions, and had even interested himself to provide him employment, of which opportunity he had not taken advantage. He could not pass over the office, where property had been willfully destroyed that he was unable to pay for. He then sentenced him to a fine of \$5, out of which, if paid, the amount of damage is to be handed to the complainant, in default, to suffer one month imprisonment at hard labor. An M. D., who was locked up the previous night for being drunk and disorderly, and subsequently liberated on bail, forfeited his recognisance of £1 by failing to appear.

FIRE.—Yesterday morning some alarm was occasioned in the immediate neighborhood by the roof of a dwelling on Broad street catching fire, and a serious conflagration nearly ensued. The cause of the fire was, as usual, the defective arrangement of a stovepipe. Much credit is due to the prompt action of Mr. R. W. Farwell, who, the moment the alarm was raised, climbed up one of the supports of the verandah, and with a bucket of water, which was handed up to him, extinguished the flames.

TEMPERANCE.—A meeting of the officers and members of the Temperance Society recently formed in this city under the auspices of the Hon. Malcolm Cameron, took place on Monday evening, and was well attended. Considerable business was transacted in the further consolidation of this much needed movement. The object of this association is "The Victoria Total Abstinence Society," and it bids fair to accomplish much good in the community.

FROM BRITISH COLUMBIA.—The steamer Enterprise, Capt. Monat, arrived from New Westminster yesterday evening, with over \$100,000 in treasure, and about 200 passengers, among whom were His Excellency Gov. Douglas and suite. She also brought down a quantity of shingles and cedar pickets, manufactured in the woods near the town.

THE STEAMER.—The mail steamer Sierra Nevada, Capt. Connor, arrived yesterday morning at about 9 o'clock, from San Francisco direct, bringing 33 passengers and a large amount of freight. She left again at half-past 6 p. m. for the Columbia river, carrying away about 50 passengers.

ALLEGED ASSAULT.—Edward Lamb, a boat man, was arrested by officer De Ceil, yesterday afternoon, on a warrant, charging him with having assaulted Samuel Raymond. The case will come up in the Police Court this morning.

Capt. Costello will go up today with the plunger Indian, to play between Saanich and Cowichan and adjacent ports. It is reported that the ferry boat on the inlet has been stolen.

The schooner Trader sailed for Cowichan yesterday morning, with a few passengers and a cargo of provisions, feed and seeds, for the use of the settlers.

FROM PORT SOUND.—The steamer Eliza Anderson arrived yesterday afternoon from Port Angeles with a few passengers, 72 head of cattle, 20 sheep and 2 horses.

EXPORT OF TREASURE.—The amount of gold transmitted to San Francisco yesterday by Wells, Fargo & Co. reached in the aggregate \$86,651.69.

Police Court.

THURSDAY, Oct. 23.

Alexander Brown was charged by officer Robertson with supplying liquor to an Indian. The prisoner had been found to receive something from the Indian after a short conversation, enter a liquor saloon, purchase a bottle, and give it to the Indian. The prisoner pleaded guilty, but said that he had only been seven days in Victoria since his return from Cariboo, and having arrived from New Zealand this season, he was unaware of the local law. He had received no benefit from the act, but was just fool enough to oblige the Indian.

The Magistrate cross-questioned him, with the view of ascertaining the truth of his statement, and then stated that he felt convinced of its correctness, though for the vindication of the law he must impose a penalty upon him. Fined, £3, in default of payment to suffer one month's imprisonment with hard labor. Edward Lamb, arrested on a warrant by officer De Ceil on Tuesday, was charged by Samuel Raymond with having violently assaulted him. Mr. Dennis appeared for the prosecution.

The complainant being sworn, said that the prisoner entered his saloon, applying to him an offensive epithet, and struck him across the forehead; he ordered him out, upon which the prisoner drew a knife and came towards him, saying he would "cut his heart out." He then knocked him down, but the prisoner getting up to pursue him, he ran out of the house, while two bystanders restrained the prisoner from further violence. The prisoner afterwards had threatened to lay in wait for him, and had been seen by another lodger to load a revolver, so that the complainant had feared to return to the house that night, believing that his life was in danger.

The prisoner pleaded guilty, but said that he was drunk at the time the offence was committed. The Magistrate accordingly fined him \$5 for the assault, and ordered him to furnish his own recognisance of £20, and three months in £10 cash, to keep the peace for three months.

JUSTICE AND THE POOR MAN.—On Tuesday afternoon application was made to the Police Magistrate for a warrant for the arrest of the second mate of the Sierra Nevada for an alleged assault, but Mr. Pemberton declined to issue one without the payment of a fee of \$5.00, or the complainant furnishing security for his appearance to prosecute. This the applicant was unable to procure, so that he was virtually denied the boasted protection of our laws under any circumstances. The following are the facts sworn to in his information:—He, Thomas Burrell, was assisting to discharge the freight, when, in throwing a line, he accidentally struck the second mate, who was standing between decks, on the head with the rope. The mate looked up and swore at him, upon which he apologized, stating his regret at the occurrence of the accident. He was, however, ordered on shore and he turned to leave, the second mate kicked him. He turned round and dared him to repeat the attack on shore. The second mate accordingly seized a hammer, with which he knocked the complainant down from behind. His teeth were all loosened, but he believed this to result from a kick while he was down, not from a blow of the hammer. He was not aware of the assailant's name, but offered to point him out to a police officer. Yet, as we stated before, no warrant was issued for the want of \$5.00 wherewith to pay the costs.

THE "ASHMORE."—The prosecution against the captain of this vessel came up on a fresh summons in the Police Court yesterday morning, on the information of Mr. Wootton, the Harbormaster, who charged the defendant with breaches of the 26th, 35th, and 62d sections of the Passenger Act, 1855. The complaint embraced deficiency of light and ventilation, departure from the dietary scale, and selling liquors to the steerage passengers. Mr. Drake appeared for the prosecution, and Mr. Bishop for the defence. Before the case was gone into, the magistrate stated that he was favorable to such matters being settled out of court if possible. The counsel, after conferring for a quarter of an hour, agreed to submit the case to arbitration, and the summons was accordingly postponed for the present. Twenty-nine names are appended to the list of passengers seeking compensation.

SURGICAL.—Mr. Sweeney, a returned Cariboo miner, while travelling from Antler to Williams Creek, some four months ago, in crossing a log on the trail, slipped his foot and fell, wounding as he thought only the muscles of the inner side of the thigh. Much suffering the wound closed with the exception of an orifice large enough to introduce a small probe. The patient was submitted to Dr. Black yesterday and after careful examination a foreign body was detected; six pieces of wood, the largest an inch long, and half an inch broad, were found imbedded in nearly two inches deep in the muscles of the inner side of the thigh. The patient is doing well.

RETURNED FROM THE MINES.—Mr. B. S. Mortimer, so long and favorably known to the inhabitants of Victoria in connection with the Potter and Robinson Troupes, returned from British Columbia last Tuesday evening. He will forthwith resume the practice of his profession in the company now performing at the Victoria theatre.

AURORA BOREALIS.—One of these interesting phenomena of unusual brilliancy was observable last night between the hours of 9 and 10.

Police Court.

FRIDAY, Oct. 24.

Dr. Walker, a dentist residing in Fort street, was charged as insane by Sergeant Blake.

The Sergeant said that he had found the prisoner between the hours of 1 and 2 a.m. knocking at the door of a cook shop, and shouting at the top of his voice (like Richard III), "A horse! a horse! my kingdom for a horse!" The officer told him that he was not a likely place to find a horse, and he then said he could find a midwife, then would suit him as well. He believed the prisoner was suffering under delirium tremens, brought on by habits of intemperance.

The prisoner said he was very sorry to be brought again before the bench; he had a splendid practice, and would try to keep steady. Even now he only drank wine.

Mr. Pemberton said that there was no lunatic asylum here, he could not entertain a charge, and dismissed the prisoner with a recommendation that he should join the Hon. Malcolm Cameron's Temperance Society.

James Walker was charged by special officer Taylor with creating a disturbance at an untimely hour, and damaging private property. Mr. Taylor said he had seen the prisoner kick some barrels off the sidewalk in front of Mr. Bayley's store, into the road. He told him to replace them and go away, but as the prisoner refused, and continued disorderly, he arrested him. The prisoner then endeavored to escape, and frustrated the officer's attempt to blow his whistle for help. He was finally, with assistance, conveyed to jail.

The prisoner represented that the police had used unjustifiable violence in taking him to the lock-up, and several witnesses were called on both sides, whose evidence did not materially affect the case.

The Magistrate said that if the officers ever did anything wrong, he was ready to entertain a complaint; but it must be understood that when a man is arrested he must submit to the authority of the officers, whom he (Mr. Pemberton) was determined to protect. He then ordered the prisoner to furnish his own recognisance of £10 to be of good behavior for three months.

MASTER AND MAN.

D. B. Ring, Esq., the well-known barrister, appeared in answer to a summons for wages issued on the application of James Leary. Mr. Courtney appeared for the plaintiff.

Mr. Ring, who had three large books before him, stated that he had engaged the plaintiff at \$30 per month; the second month \$40; but as he had quitted his service without giving due notice, he now declined to pay him. An end must be put to this way of treating masters. He had sent for Mr. McCraith to act on his behalf. (This gentleman here entered the court with two more portentous volumes.)

James Leary—I was engaged as groom by Mr. Ring on the 28th June last. On Monday previous to the 29th Aug. I told him I wished to leave at the end of the month. He had called me across from the stable, and said, "are you going to leave me, James?" "Yes," says I. He then said, "I don't begrudge your leaving; I don't want to stand in the way of a man who can better himself." I reminded him that my month was nearly out, so he had better get another man. On the 29th Aug. between 7 and 8 o'clock, I offered him the stable key. He would not accept it that time. I went to him afterwards, and he took the key. He then told me I had saved my money, and that he would bring me before Mr. Pemberton. On the Monday following I told him that I was tired and settled. He said, "I am too busy now, James," says he, "and am going down to court. I'll settle up with you, although I needn't, for you had a right to give me a month's notice." I have not been paid.

By Mr. McCraith—During the first month he gave me a coat and vest—none; also a pair of old boots, (laughter). This was more than four weeks before I left. He did not say anything about bringing me before Mr. Pemberton the evening that I gave him the five day's notice. When he came to the key from me he said so. He complained that I had sent some men to ask for my situation. I only sent one man.

By Mr. Courtney—It was not intimated to me that the suit of clothes was to be in lieu of my month's wages.

Wm. Ryan was called for the defence, but all the evidence proved was, that he had not been engaged by Mr. Ring until after the plaintiff had left his situation.

Mr. McCraith having addressed the bench, called Mr. Ring, who, being sworn, said that he had not used the words imputed to him of "not wishing to stand in the way of a man who could better himself," in a way that might be accepted as waiving his right to a month's notice. The first intimation he had of the plaintiff being about to leave was given by other parties sent by the plaintiff after the situation.

Mr. Pemberton said that the plaintiff, in applying for the summons, had assured him that he could bring a witness who had been engaged by Mr. Ring previous to his leaving his service. As the matter stood, he must dismiss the case.

WATER.—Some time since we mentioned that a scheme for bringing fresh water from Spring Vale, Esquimalt Harbor, for the use of the Town of Victoria, had been projected. A reservoir has since been erected upon Union Wharf capable of holding 30,000 gallons, and a vessel by which the fluid is to be brought from the springs, having on board a tank of 40 tons capacity, built. The water-bowl performed her first trip yesterday afternoon, and arrived at the wharf about 5 o'clock. The hose was laid on, and the contents pumped out into the tank. We learn from Mr. Brodie that water-carts and shipping will be supplied at moderate rates, so soon as arrangements are completed. In the meantime we can but hope that nothing will occur to mar the consummation of this most useful enterprise.

NAVAL INTELLIGENCE.—H. M. S. Mutine, Ilectate, and Devastation, and the gunboat Forward, are now lying at Esquimalt. Her Majesty's steam-frigate Topaze, 51 guns, the Hon. Capt. Spencer, was to have left Callao on the 9th September. The Royal Naval Hospital has been removed from Hospital Point, Esquimalt, to the Boundary Commission Barracks. The former locality will in future be occupied by naval stores, protected by fortifications. The Grapple steamed into Victoria Harbor yesterday afternoon.

Several lucky miners who came down on the Eliza Anderson yesterday had heavy swags of the precious metal. One man stepped off the boat carrying about 100 pounds of dust, snugly done up in canvas, on his shoulder, looking careful at the gangway—which happened to be a little trail—lest it should give way with him and his load. Five or six others had neat little parcels of 50 to 60 pounds each. The sight of so much gold caused several of the bystanders to remark that they would give Cariboo still another trial next year.

THE ELIZA ANDERSON.—Arrived from New Westminster yesterday morning at 2 o'clock, bringing 180 passengers, and about \$200,000 in gold dust, \$82,000 of which was brought down by Ballou's Express. The Enterprise stuck on the bar going up, and was delayed several hours.

An alarm of fire was raised at an early hour yesterday morning, smoke having been seen issuing from the roof of the Washington Restaurant. It was caused by the stove-pipe becoming overheated by too strong a fire, but fortunately it was observed in time to prevent serious consequences.

THE BALL.—The ball at the Island Hotel last night was fairly attended, and the votaries of Turpino were in the full enjoyment of the exercise at the hour we went to press.

MIGHT HAVE BEEN WORSE.—A man, who was drunk to give his name, was arrested last night by officer Crowley, for breaking a glass door at a house of ill-fame off Broad street. When searched by the jailor, the sum of £79 6s. was found upon his person. It is perhaps lucky for him that he fell into the hands of the police.

THE STEAMER ENTERPRISE arrived from New Westminster yesterday evening at six o'clock, bringing ninety passengers and a considerable quantity of gold in the hands of the passengers. The Enterprise did not strike on the bar as was reported in our last, but anchored in a thick fog.

THE SCHOONER ALBERTA from Barclay Sound, with a load of lumber, arrived yesterday afternoon. She spoke the Cyclone at the entrance of the Sound, going in, also the Ionian outside of Cape Classet, outward bound.

READING ROOM.—Mr. Heisterman has leased a large room next to Matheson's new brick hotel for a reading room. The subscription list numbers a hundred and sixty signatures.

ON LEAVE.—A number of sailors and marines, belonging to H. M. S. Devastation, have been in town during the past few days.

FOR THE PHILIPPINE ISLANDS.—The clipper ship Mountain Wave sailed yesterday, in ballast, for the port of Manila.

Foreign Intelligence.

GERMANY.

HANOVA.—Herr Von Borries, Minister of the Interior, has tendered his resignation which has been accepted. It is rumored that Herr Von Werth will be his successor. The King has revoked the order enforcing the use of the small catechism of Luther, in consequence of the great disturbance which was everywhere created by its introduction.

Count Bismarck, an exile in England, publishes a letter in reply to the decree of amnesty, issued by the Grand Duke of Baden for political offences, in which he says that he and his friends have never sought royal clemency—that the principles they fought for, they still entertained and that if they now revisited their fatherland, it was because a barrier had fallen which had hitherto been unjustly raised against them.

In the note addressed by Count Reichenberg, of Austria, to Count Karolyi, relative to the recognition of Italy by Prussia, he says the Emperor hopes Prussia may never have to regret the step she has taken, and as to the "guarantee" he does not consider they are worth the paper they are written on.

The Prussian Government writes to its representatives in Germany, explains its views on the projects of Federal reform presented at Frankfurt. The formation of a restricted union under the direction of a single head, both as regards internal and foreign affairs, is warmly advocated. In another circular, from the same government to the German Cabinets, the reasons which led to the treaty of commerce with France are explained, and it is declared that the governments refusing to adhere to it have implicitly severed their connection with the Zollverein. The governments already known to be opposed to the treaty are those of Wurtemberg and Bavaria. The purpose of a conference at Berlin to deliberate concerning the entry of Austria into the Zollverein.

Several Prussian papers have recently been prosecuted for publishing a translation of a cutting article in the *Saturday Review*, although some of them contended that it was only to rebut the allegations contained in it.

At a recent review of the 3rd Division at Penon, Major Van Horn was severely wounded by a shot from the enemy's side. A strict investigation was held, but nothing satisfactory was elicited.

By our last dates from Frankfurt we learn that the Senate has voted the adhesion to the commercial treaty between France and the Zollverein. A correspondent writing from Berlin states that the financial committee of the Lower House recommended the Land tag to refuse the monies demanded by the Government for the ships lately purchased at the English dockyards. The refusal is based upon a question of constitutionalism. The Government of Denmark writes to the Emperor of the Prussian fleet, has in its turn ordered the construction of several war vessels in England. Mr. M. Burger has been by Imperial decree appointed Austrian Minister of Marine. By a late Imperial decision it is ordered that in all Hungarian communes where several languages are spoken, the official language shall be that of the majority of the inhabitants.

From Austria we learn of the return of the Empress to Schoenbrunn perfectly cured. There were great demonstrations of joy at Vienna, where the Empress is very much beloved. At a recent sitting of the Reichstag a proposition, emanating from the legal body, was accepted, that such regulations as could not be introduced without the concurrence of the Legislature, should not be binding upon the judges. From the Paris Press we learn that Austria has determined to call out 40,000 more soldiers. This must have been in view of Italian complications which have now been obviated in a great measure by the defeat of Garibaldi. The Press of Vienna announces that more than 3000 men have crossed the Austrian frontier to assist the Montenegrins against the Turks. The Austrian Command finds the greatest difficulty in keeping down the excitement. From Warsaw we hear of another attempt at assassination. A lithographic printer, named Jean Roustan, tried, though unsuccessfully, to stab the Marquis Wielopolski with a poisoned dagger. He says he was compelled by two others to take an oath to rid the country of the Marquis, and was watched by them till the attempt was made. Zarozinski, who attempted to assassinate the Grand Duke Constantine, was tried, found guilty of the crime, and shot in front of his sons, on the occasion of the baptism of his son, the Grand Duke gave 3000 roubles to the poor of Warsaw.

The Weekly Colonist.

Tuesday, October 28, 1862.

Our Currency.

We have noticed the prevalence in this Colony of a practice which might possibly be productive of some inconvenience; we allude to the fact that on a great many contracts made in this place the consideration money is specified to be paid in dollars and cents, of U. States currency. Practically, dollars and cents are our principal denomination of money; in fact, almost entirely excluding pounds, shillings and pence. The relative value also of the two descriptions of currency is well known amongst us. Yet we are not aware that any legal enactment has ever positively declared or recognized the dollar to be a denomination of our money, or specified its value. As the dollar is the name given in several countries to a certain description of money, and as the value in each place varies somewhat, we are consequently driven to the expedient, when we make use of the term in legal documents, of particularizing what we mean by it. If we speak of American currency, is there not some danger under existing circumstances of giving rise to disputes? Ten dollars in American currency may now mean a Treasury Note for that sum, since they have been made a legal tender in the States. Of course no one here ever contemplated being paid a debt in United States paper; yet is there not a possibility of such a contingency, where a contract specifies the payment of a certain sum in American currency? Some have provided against that by declaring the debt payable in American gold coin. Such a course, we think, is the advisable one. It is far better to provide against the possibility of any trouble by some such provision, than leave a loop-hole for tricksters and litigation. If it were decided by our courts that the words "one hundred dollars" of the currency of the United States, mentioned in a contract, meant the coin or currency of that country for the time being, and not an equivalent sum in our own currency, one might expect to see the "green backs" introduced in our midst. One can perceive, then, how necessary it is that the relative value of the terms dollars and cents should be fixed by law. The Governor's proclamation, we imagine, would be quite sufficient to render legally certain what is now only a custom.

The Inter-Colonial Railway.

By our late exchanges from the Eastern Provinces we learn that the Inter-Colonial Convention appointed from Nova Scotia, New Brunswick and Canada to confer on the subject of an Inter-Colonial Railroad, had just terminated their sittings most satisfactorily. The Convention consisted of the Governors of the three Provinces, with delegations of their respective ministers, so that we may conclude that every justice was done towards the object of their meeting. As far as we are yet able to learn of the results of their labors it would seem that Canada is to bear five-twelfths, and New Brunswick and Nova Scotia, between them, seven-twelfths of the amount of the expenses of building the road. According to this Canada would have to pay some \$50,000 a year—the whole amount being \$120,000 yearly interest on the capital required to build the line. The three Colonies will have to raise the money required for the work; but as the Imperial Government has agreed to become their security, they will have plenty of offers for all they want. It only remains for the respective colonial legislatures to give their assent to the arrangements entered into by their ministers to have the work commenced as soon as the Imperial Government have signified where the line is to run. This, we believe, was one of the conditions of the Imperial guarantee being given. The whole length of the road is estimated at 400 miles, and its cost at about £4,000,000. When completed there will be an uninterrupted rail communication between Halifax, on the Atlantic, and Windsor, opposite Detroit, in Michigan, all in British territory. A magnificent instalment of the great iron belt which is to encircle the continent. Every day seems to hasten the movement of those circumstances which are to aid in connecting the two oceans.

The Canadian Government have just authorized the construction of a road from Collingwood, which is the northern terminus of railway communication in Canada, up along the east coast of Georgian Bay to the Bruce copper mines, near the junction of Lakes Huron and Superior. This will have the effect of throwing several hundred miles open to settlement, and paving the way for railway communication. From Lake Superior to the plains of the Saskatchewan is but a step which could soon be spanned by a road from thence to the base of the Rocky Mountains. No doubt the Home Government will contribute liberally, as that would be a work of Imperial interest. We, on our parts, must be prepared to meet them at the great dividing line, and thus cap the climax to this magnificent trans-continental communication.

NANAIMO.—About 150 Indians assembled last Tuesday at the Hudson Bay Co.'s store to get pay for their land. The Monitor has sailed for San Francisco. A new "bore" has been commenced near the Indian camp to test the thickness of the seam of coal there.

LOCAL INTELLIGENCE.

Saturday, Oct. 25, 1862.

Police Court.

A man named Thomas, arrested between 7 and 8 o'clock on Thursday evening, by officer Crowley, was charged with creating a disturbance.

It seems that the prisoner had been ejected from a house, and being drunk, by force, attempted to rush into a store adjoining. This was resisted by the proprietor, who was struck by the prisoner, and at the same time one of the glass doors of the store was broken. The constable, arriving at this moment, effected an arrest. The store-keeper did not appear to prosecute.

The prisoner stated that he was drunk at the time of the offence being committed, and offered to furnish references to prove he was a man of good character.

He was remanded for one day that an opportunity might be afforded to the police to make further enquiry.

A French Indian, named Jim, was charged by officer Hall with having been drunk and disorderly.

RETURNED.—Father D'Herbomez, the Superior of the Oblate Fathers, in this island and British Columbia, and who now resides at his mission at Esquimalt, recently returned on the Sierra Nevada from France with three Oblate Fathers and two lay Brothers. The object of Father D'Herbomez in going to France was the election of a Superior over the Order throughout the world. The names of the recently arrived Fathers are Gendre, Boudre, and Lefebvre. The order appears to be prospering in those provinces, but chiefly among the native tribes.

NEW WHARF.—The first wharf above the site of the old bridge across Victoria harbor, will be shortly completed. The depth of water at high tide on the frontage is 22 feet; at low tide 13. A handsome stone building on Store street, to which the wharf opens, is being built for Messrs. Janion & Green. The works are being conducted under the supervision of F. W. Green, Esq., City Surveyor. Mr. Briggs is the contractor.

FIRE MAGAZINE.—The Chief Engineer of the Fire Department has authorized Mr. Edgar, Foreman of the Hook and Ladder Company, to carry on their truck a powder magazine containing twenty pounds of powder with fuse. It is only to be carried at night so that in case of their being necessary to blow up any house to prevent the spread of fire, the powder and fuse will be ready, which might not be easily got if the shops were closed.

WE understand that the seamen of H. M. gunboat Grappler express some discontent at the Colonial Government having offered them no remuneration for the additional work necessarily imposed upon them during the late settlement exercises.

WE understand that Mr. John Clayton, a practical botanist, is engaged under the auspices of the Government in making a collection of the seeds of our native shrubs and trees, for transmission to the home authorities for planting in the royal domains.

CITY COUNCIL.—The Mayor and several members of the Council met in the police court room, at seven o'clock last evening, but after waiting patiently till eight for a quorum, dispersed to their homes.

THE steamer Enterprise sailed for New Westminster last night at 12 o'clock, with a few passengers, several head of sheep, and a heavy freight of general merchandise.

FOR THE NORTH.—The sloop Leonede, Capt. McAlmond, sails this morning with 10 tons of freight for Bentinck Arm, and two tons of freight and one passenger for Queen Charlotte Island.

FOR THE COMAX COUNTRY.—H. M. gunboat Grappler, Lieut. E. Hope Verney, has received orders to sail for the Comax District on Monday next.

THE steamer Eliza Anderson sailed yesterday morning at 8 o'clock, for Olympia and other ports on the Sound, carrying thirty passengers and a small quantity of freight.

THE bark Ashmore, yesterday, moved along side Little's Wharf to take in ballast.

Monday, Oct. 27.

Police Court.

Wm. Thomas appeared on remand, to answer the charge preferred by officer Crowley of breaking a glass door, etc. The master of the house did not appear to prosecute, and as nothing was known against the accused's character, he was dismissed upon payment of the costs of arrest, and ordered to furnish his own recognizance for \$20 to be of good behavior for six months.

John McDonald, formerly discharged from the police force for drunkenness, was charged by special constable Levy with being a suspicious character. He had arrested him at an early hour on Saturday morning, and stated that he had on several occasions observed him lurking about the private passages of hotels, etc. Sergeant Blake said that he had often warned him. He was ordered to enter into his own recognizance of £10 to be of good behavior for three months; in default, sentenced to one week imprisonment.

STREET PREACHING.—The Rev. Mr. Lums addressed a large and promiscuous assembly of people last night at the corner of Johnson and Waddington alleys. He was listened to in the most respectful manner, the audience, numbering several hundred, being very quiet and attentive. The rev. gentleman stated that he would take frequent opportunities of addressing them in the same manner.

CORONER'S INQUEST.—An inquest was held last Saturday in the Boomerang Inn, over the body of a man named Alexander Gray, a returned Stickeen adventurer, who was found dead in his tent on Friday night. The evidence showed that since his return from Stickeen, he had taken to excessive drinking, having been constantly drunk for nearly ten days, and from having taken no nourishment, he was in a state of great exhaustion. On the night of his death, he staggered out of his tent to where his comrades were sitting around a fire, and was helped back again, where he must have almost immediately expired, as, when they entered, a few minutes afterwards, life was extinct. Dr. Lacy, who attended him, was of the opinion, with the Coroner, that his death was caused by apoplexy, brought on by excessive drinking; and the jury brought in a verdict accordingly. Deceased had about \$50 in the hands of a comrade, which was taken possession of by officer Crowley.

SUSPICIOUS.—Capt. Mitchell, of the Trades, on his last return trip, passed a canoe, manned by five Indians calling themselves Fort Rupert Indians, which had evidently belonged to white men, as it was rigged with mast and sail, oars, etc. His suspicions were aroused by learning that they had been endeavoring to sell it at several places; and by the fact that they did not give a straightforward account of how it came into their possession. It may, however, have been sold to them by some returning Stickeenites, who came down in some other craft.

ALLEGED RAPE.—Two men have been looked up on a charge of rape; one being arrested in town, the other out at Saanich. The crime said to have been committed occurred at Saanich, and the complainants are both Indian women who are married to settlers.

ST. GEORGE HOTEL.—This new and extensive brick hotel, situated on View street, was opened on Saturday evening by the proprietor, Mr. Bendixen, spreading a cold collation, and entertaining numerous guests—among whom were the Mayor and some of our principal merchants and professional gentlemen.

HOUSE OF ASSEMBLY.—At the last sitting of this august body, it was determined in future to hold evening sessions. In accordance with the new arrangements, the next meeting will take place to-morrow evening, at 7 o'clock.

SO calm was the weather yesterday afternoon that the sunset glories of the moon-war at Esquimalt were distinctly heard on the James Bay Bridge.

WE are requested by Capt. Doane to say that his name was put on the Committee at the Meeting on Saturday evening, without his consent.

SHAMEFUL.—The members of the Police force have received no pay for over three months. Tradesmen's claims are also undischarged.

NEW BUILDING.—The erection of a stone building on the west side of Store street, and in the ravine, was commenced last week.

NEW SHEDS.—A couple of stout spars are being got ready for erection upon the Hudson Bay Company's wharf, for masting purposes.

VICTORIA JAIL.—On Saturday morning the jailer reported 23 inmates, 2 of whom are insane. Two were recorded as at large on bail.

THE boilers of Captain Irving's new steamboat Reliance are upon the brick Emily W. Seyburn, now due from San Francisco.

Tuesday, Oct. 28.

Police Court.

Lewey, a sharp-looking Indian boy, about fourteen years of age, was charged by special constable McGee with stealing some pica.

The officer said that from information he had received, he was on the watch to discover the persons who were in the habit of stealing from Mr. Dehman's store, on Johnson street. On Saturday he saw the prisoner and another boy come to the store, where the latter entered and brought out a fruit pie and a loaf of bread which he was in the act of handing to the prisoner, when disturbed by the approach of the officer. The first thief dropped the articles and bolted, but the prisoner was captured.

Thomas Casey, a boatman, was charged by officer Shepherd with creating a disturbance on Saturday night, between 9 and 10 o'clock, on Little's Wharf, with some drunken Indians.

In answer to a question from the bench, the officer said that these Indians were in the employ of Mr. Little during the day, and came drunk at night.

Mr. Pemberton said that it was Mr. Little who should be indicted. Nothing being known against the prisoner's character he was discharged.

Several men looked up for being drunk and disorderly were sentenced to the usual fine of five shillings.

ALLEGED RAPE.—Peter Lind and Bill Bonner, two Saanich settlers, arrested on warrants issued by the Stipendiary Magistrate, were charged in the Police Court yesterday morning with having committed the above outrage upon the persons of Mrs. Mary Vautiere and Mrs. Margaret Garboure, both Indian women legally married. The information deposed that the alleged outrage had been committed in the house of George Fos, ferryman at South Saanich, where the women had stopped upon the occasion for refreshment. Mr. Ring appeared for the defence; sergeant Blake acting as interpreter. The first witness, Mary Vautiere, when questioned as to her knowledge

of the obligations of an oath, replied, through her interpreter, that she believed in the truths of christianity; she had been baptized by a priest who had given her her first name; and she knew that if she did right she would go to heaven; if wrong, that she would go to hell. The two complainants were heard, and they seemed to stand cross-examination very well. They both asserted that they were faithful and sober wives, but confessed to having imbibed a few glasses of liquor before the occurrence which led to this trial. The only white witness, George Fos, testified to both women having been drunk, and to their being well known as prostitutes. Mr. John Coles was called to prove that the women were both addicted to loose habits and drunkenness; when the magistrate decided that though a prostitute was equally entitled to protection, the evidence was insufficient to warrant the case being sent for trial, so the prisoners were discharged.

THE "ASHMORE" PROSECUTION.—This case was called in the Police Court yesterday morning, when the prosecutor, Mr. Wootton, did not appear. Mr. Conway stated to the bench that he believed the matter was not yet arranged. Mr. Pemberton said that Mr. Wootton should have been in attendance; he would not sanction poor men's time being wasted by the negligence of their solicitors. The case was then remanded, and an officer directed to notify Mr. Wootton. When the court again was sitting, Mr. Drake, who had appeared for the prosecution, informed the Magistrate that the arbitrators had not yet finished their labors, and requested that the case might be adjourned until Friday, which was granted. The arbitrators are Messrs. Harvie and Wylie—Robert Burnaby, Esq., being chosen umpire.

WHISKY SELLING TO INDIANS.—Jacob Fisher was brought up on this charge in the Police Court yesterday morning. The officer's attention was directed to the prisoner on Saturday afternoon by a citizen, and they together followed him, when the latter saw a bottle given to an Indian, whom the officer followed and arrested with it in his possession. The Indian said he had received the bottle from the prisoner, but denied having paid any money for it. Sergeant Blake said the prisoner had formerly been tried on a similar charge and ordered to furnish security to be of good behaviour, but in default had suffered a month's imprisonment. The case was remanded for one day.

U. S. SOLDIERS IN THE CITY.—Several American soldiers visited our city yesterday. They belong to company C, 9th regiment of U. S. Infantry, under the command of Capt. Bissell, which is stationed at the military post of occupation on San Juan Island. The Company have not, till now, received pay for six months—some of them not for sixteen months, having been out on a Government expedition. They were all paid in Treasury notes, which are quite current across the Sound, but when the men came to Victoria, to their surprise nobody would look at their shupladders. They ultimately got them cashed at the heavy shave of twenty per cent.

FOR THE COAST SETTLEMENTS.—H. M. gunboat Grappler, Lieut. Com. Verney, sailed from the Hudson Bay Company's wharf punctually at 1 o'clock yesterday. She is bound for the new Comax settlement, and will touch at Cowichan and Nanaimo on her way. Five passengers took advantage of this opportunity to visit Comax, among whom were the Bishop of Columbia and several of the others being intending settlers. A number of persons were assembled on the wharf to view her departure. It is surmised that a clergyman of the Church of England will shortly be appointed for each of the new settlements.

ARRIVAL.—The bark Adelaide Cooper arrived in this port yesterday evening from San Francisco, having been twenty-seven days on the way. She had light head winds during the whole voyage. The barkentine Fremont was lying off Race Rocks drifting with the tide, when the Adelaide Cooper came in. The Fremont has 80 head of cattle on board, but had not lost one, although twenty-six days out.

AID TO LANCASTHIRE OPERATIVES.—The great suffering of the working classes in Lancashire has given rise to a great deal of sympathy both at home and in the colonies; and efforts have been made in various places to help to alleviate the distress of the poor sufferers by means of contributions for that purpose. We are glad to learn that a similar movement is spoken of in town, on behalf of this Colony. It is to be hoped that it will meet with every encouragement.

OYSTER TRADE.—Our remarks on this branch of trade, made in the COLONIST a few days ago, have not been without their effect; the sloop Eagle has been fitted out with oyster rakes, etc., and sailed yesterday for Salt Spring Island, to take in a load of the delicious bivalves. Should the adventure prove profitable, doubtless others will be induced to go into the business, which may thus, ere long, assume respectable dimensions.

THE CORPORATION SEAL.—The accepted design of Messrs. Wright & Sanders has been engraved by Mr. Watson, of Wharf street, in a masterly manner. As Mr. Copland considered the wings of Civilization and Commerce not stout enough for even celestial beings, the die has been returned to the engraver, who consented to put on a more useful kind of appendage.

SCREWDRIVER ACCIDENT.—The schooner Royal Charlie, from Nanaimo with coals, arrived on Sunday night. She ran on the rocks in Dodd's rapid on Friday last, and "stuck fast" for two days, only getting off by throwing overboard half of her cargo—about twenty tons. She received no material injury.

SUMMARY COURT OF CIVIL JUSTICE.—The case of Parker vs. Sample occupied the Court for the greater part of yesterday. Mr. Bishop appeared for the plaintiff, and Mr. Park for the defendant. This was an action brought for the purpose of recovering damages for alleged injury done to a buggy in the year 1860, at the defendant's wedding. It was postponed till to-morrow.

H. M. S. Hecate steamed out of Esquimalt harbor early on Sunday morning, and proceeded to Nanaimo to take in coal; from thence she will go to New Westminster.

COMPROMISED.—The case of Epper & Nadoff vs. Marks, a suit for damages for assault, was yesterday called in the Summary Court, when it was stated that the matter had been compromised.

REAL ESTATE.—An advertisement appears in this morning's issue, to warn all defaulters under the "One per Cent. Tax Act" that they have just one week given them in which to pay up.

THE steamer Enterprise sailed for New Westminster last night at 12 o'clock, carrying a few passengers and a considerable quantity of freight.

THE PRINCE OF WALES' MAJORITY.—A requisition is in circulation for presentation to the Mayor, requesting him to take steps for the celebration, in a becoming manner, of the day upon which the heir to the Throne attains his majority.

EQUIMALT ROAD.—The Government has commenced work on the Esquimalt road. A few workmen were put on yesterday morning at Potter's bridge.

FOR BARCLAY SOUND.—Messrs. Stamp & Co.'s new schooner Alberni, Capt. Anderson, leaves this morning for Barclay Sound, in ballast.

Foreign Intelligence.

FRANCE.

M. de Morny, in his address to the Council-General of the Pays-du-Dume, says "I have hitherto at the opening of every session of our Council-General found pleasure in explaining to you the policy of the Emperor's Government. This time I shall abstain from so doing." The policy of the Emperor, must under such circumstances, one would think, be very critical. The celebrated M. Miris has, at the Police Court of Douai, been sentenced to fine and imprisonment for publishing a pamphlet with the title "A Letter to M. Dupuy, Attorney-General at the Court of Cassation."

At the banquet which followed the maneuvers at Chalons lately, the health of the Prince Imperial having been drunk with enthusiasm, the young Prince rose and replied by saying "I drink to the health of the army," and after a short pause added with energy, "and I hope to become a good soldier."

In the appeal case of Vassel, Miot and others against the judgment pronounced against them for conspiracy against the government the sentence was confirmed against all except Adine and Bray, who were acquitted.

The French Agricultural and Commercial journals say that on the whole the harvest of 1862 may be considered that of an average year, that is to say, about 25,000,000 of hectolitres, or nearly the annual consumption of France. The wine crop it is expected will be more than the average.

The Emperor lately attended the Polygon of Vincennes to witness experiments with new war material. Cartridges with compressed powder, a new infantry musket, an invention called the "pendulum cannon," and a new system of breech-loading gun were tried before his Majesty with satisfactory results.

Marshal Canrobert, in addressing the troops upon the breaking up of the camp at Chalons, says that the infantry, cavalry and artillery are equal to any demand that the country and Emperor may bring from their devotedness.

M. Michel Chevalier in an address to the Council-General of Heralty, of which he is the President, dwells very strongly on the hospitable manner in which the English Government and English society received visitors to the International Exhibition.

The editor of the *Courier du Bas-Rhin* has been fined 200fr. with costs for an article censuring the acts of a Judge of Instruction on account of a preventive arrest which was not proceeded in.

SPAIN AND PORTUGAL.

The Spanish Government were to present to the Cortes a bill granting a new political system to the Colonies of Cuba, St. Domingo and Porto Rico, which will send representatives to Madrid.

Considerable agitation prevailed recently in the Capital by bands of populace assembling to celebrate the insurrection against the remembrance of the French. Some went around singing "Long live Garibaldi!" Order was soon restored, however.

A Council of Ministers was shortly to determine the question of granting an amnesty to the insurrectionists of Loja. All soldiers having only 18 months to serve have been discharged.

From Portugal we learn of extensive preparations for the royal marriage, which is to take place this month.

Great complaints are heard from the interior of the failure of the grain crops. Large importations of foreign cereals will be required to meet the deficiencies. The wine crop also is scanty. Some disturbances had been created at the mines of Brossa, near Aveiro, under the popular delusion that the smelting generated the grape disease. The trouble however had subsided.

An advertisement in the *Columbian* calls upon lot owners to pay up their taxes in New Westminster before November 1st, or else their lots will be sold.

A meeting has been held at Sutton's saloon, Yale, and a liberal subscription raised to pay the Hon. Malcolm Cameron's expenses as delegate to England.

Tuesday, October 28, 1862.

JOSEPH PORTER,
Acting Clerk of the Council.

WASHINGTON, Oct. 8.—Federal gunboats have been destroying rebel batteries down the Potomac.

Ferry letter of the 10th, says that notwithstanding the apparent inaction, it is believed that prompt orders have been received for one of the largest and most important movements of the war. Preparations are rapidly progressing and within the next week or ten days the country will doubtless be flooded with fresh troops, and the

It is rumored that England has pointed out to France the necessity of evacuating Rome.

Garibaldi's health is reported satisfactory.

St. John, Oct. 12.—The Asia with de-

between New Westminster and Port Douglas and is very popular with the travelers on the river. Owing to the high fares charged by the river steamers, however, a great

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J. A. McCREA WILL MAKE CASH
advances on goods to arrive from England or
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